45. FortyFive

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Student and Parent Agreement

The terms for learning with tutors and coaches on FortyFive, for IB Diploma students and their parents

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Before you sign. This is a draft. It has not yet been checked by our lawyer, and it is not in force until it has been, and until it has been signed. Words in *[square brackets and italics]* are filled in by FortyFive before the agreement is sent to you.

The parties

1. FortyFive. *[Legal name of the business]*, a *[sole proprietorship / LLP / private limited company]* with its registered address at *[address]*, GSTIN *[GSTIN]*, which runs the website and app called FortyFive ("**FortyFive**", "**we**", "**us**").

2. The Student.

Full name	Date of birth
School	DP year and exam session (for example, DP1, May 2028)

3. The Parent. The Student's parent or legal guardian.

Full name	Relationship to the Student
Email	Mobile

Who is bound by this agreement (tick one)

☐ **The Student is under 18.** Under section 11 of the Indian Contract Act, 1872, a person under 18 cannot enter a binding contract, so the Parent is the party to this agreement and is responsible for paying. The Student signs to show they have read the rules and will follow them.

☐ **The Student is 18 or over.** The Student is the party to this agreement. A Parent is linked only if the Student chooses, and sees only what the Student allows (clause 4.5).

In short

This summary is here to help you read the agreement. If it ever seems to say something different from the clauses, the clauses are what count.

- Every tutor is checked before they teach: identity, verified IB results or teaching credentials, references or a background check, a demo lesson and safeguarding training.
- A student under 18 never pays. A Parent approves every booking and pays for it.
- The price you see is the price you pay. Every booking shows a receipt of where the money goes.
- Every lesson and message stays on FortyFive, only between 7 am and 9 pm for under-18s. A Parent can read every message and join any lesson.
- There is a Report button on every screen. A named adult reads every report within 24 hours, and the same day if it is about a child's safety.
- Coursework help stays inside the IB's rules: coaches teach and ask questions, and never write, edit or mark up the work.
- We never show ads, sell your data or track how students behave.
- No one can promise you a grade, and we never will.

1. What the words mean

1.1 **Platform** means the FortyFive website and apps, including lessons, messages, bookings and payments.

1.2 **Tutor** means a person approved by FortyFive to teach on the Platform. A **Coach** is a Tutor, aged 18 or over, approved to give coursework coaching.

1.3 **Lesson** means a tutoring session booked and held on the Platform. A **Coaching Session** means an hour of coursework coaching. A **Course** means a recorded course sold on the Platform. The **Marker** means our coursework check, which gives a report of bands, evidence and questions.

1.4 **Price** means the full amount shown on a booking or a Course, including GST.

1.5 **Safeguarding Lead** means the adult FortyFive names as responsible for safety reports, currently *[name]*, reachable at *[safety email]* and *[phone]*.

1.6 **Under-18** means a Student who is under 18 years old.

2. What FortyFive is, and is not

2.1 FortyFive is a place to find IB Diploma Courses, Tutors and coursework coaching, with free tools. We check every Tutor, take payments, keep the records and handle reports.

2.2 Tutors are independent professionals, not our employees. They set their own prices and hours, and they are responsible for their own teaching. We are responsible for how we check them and how we run the Platform.

2.3 Nobody can promise an IB grade. FortyFive and its Tutors will never promise or guarantee a grade, a predicted grade or a university place.

2.4 FortyFive is not affiliated with or endorsed by the International Baccalaureate Organization. We never use or share IB past papers or markschemes.

3. Accounts and a Parent's approval

3.1 An Under-18's account needs a Parent's approval before the Student can message a Tutor, book a Lesson, post a request or use the Marker. Until then the Student can browse, use the free tools, watch Course previews and save Tutors.

3.2 To approve, the Parent confirms their identity and their relationship to the Student *[through DigiLocker or another method our lawyer confirms]*, and gives the consent in Schedule 2. This is the verifiable consent the Digital Personal Data Protection Act, 2023 and its Rules require before we process a child's personal data.

3.3 Each person has one account. A Student can link up to two Parents. Keep your password to yourself, and tell us at once if you think someone else has used your account.

4. What a Parent can see and do

4.1 A Parent of an Under-18 can see every booking, read every message between their child and a Tutor (read-only), read every help log and Marker report, and see every payment.

4.2 A Parent can join any Lesson or Coaching Session as an observer, and can message a Tutor in their own thread.

4.3 A Parent approves and pays for every booking and every Course. An Under-18 never pays.

4.4 A Parent may ask the Safeguarding Lead to look at a recording that is part of a concern (clause 8.3).

4.5 **At 18.** On the Student's 18th birthday we ask the Student whether their Parent should keep seeing their account. Until the Student answers, nothing changes. After that, the Student decides, and the Student becomes the party to this agreement for anything booked from then on.

5. Booking

5.1 The Student chooses a Tutor and a time and sends a request. For an Under-18, the request goes to the Parent, who approves and pays. We hold the slot for 12 hours while the Parent decides.

5.2 The Tutor accepts or declines within 24 hours. If they do not, the request lapses and any payment is refunded in full.

5.3 Lessons and Coaching Sessions for Under-18s take place only between 7 am and 9 pm in the Student's local time, only online, and only on the Platform. The Platform does not offer slots outside these hours.

6. Prices and payment

6.1 The Price shown is the full price, including GST. There are no booking fees or extras on top. Every booking shows a receipt of where the money goes: the Tutor keeps 90% of a Lesson and a Coach keeps 85% of a Coaching Session, and the rest is FortyFive's fee.

6.2 Courses cost Rs 1,499 including GST. Anyone who asks can have a free place on any Course, with no forms, no proof and no questions. A Marker check costs Rs 499, and is also free if you ask.

6.3 Payments go through our payment provider, *[name]*. We never see or store full card details. We send a GST invoice for every payment.

7. Cancellations and refunds

7.1 Lessons and Coaching Sessions:

What happens	What you get back
You cancel more than 24 hours before	Everything
You cancel within 24 hours, or the Student does not join within 15 minutes of the start	Half the Price
The Tutor cancels, at any time, or does not join	Everything
You report a problem within 48 hours	A person at FortyFive decides within 7 working days, and the Tutor is not paid until then

7.2 Courses: a full refund if you ask within 7 days of buying and less than a quarter of the Course has been watched.

7.3 The Marker: a full refund if the report does not arrive within 48 hours of submission.

7.4 Refunds go back to the original payment method within 7 working days of being agreed.

8. Recordings

8.1 When the Parent sets up the account, they choose whether Lessons are recorded (Schedule 2). Coaching Sessions are always recorded, so the help given can be checked.

8.2 Recordings are kept for *[90 days]*, or longer if a report or review needs them. They can be opened only by the Safeguarding Lead and our integrity reviewers, and every opening is logged. We never use recordings for marketing or to train AI.

8.3 A Parent may ask the Safeguarding Lead to review a recording that is part of a concern. Students, Parents and Tutors cannot download recordings.

8.4 Nobody, including the Student and the Parent, may record, screenshot or copy a Lesson, a Coaching Session or a message thread.

9. Rules for Students

9.1 Be respectful to Tutors and to FortyFive staff.

9.2 Keep everything on the Platform. Never give a Tutor your phone number, email, social media handle or address, and never ask for theirs.

9.3 Tell your Parent, or use the Report button, if a Tutor ever:

(a) asks to talk, meet or pay anywhere other than FortyFive;

(b) asks you to keep a secret, or to leave your Parent out;

(c) offers gifts, or talks about personal, romantic or sexual things; or

(d) does or says anything that makes you uncomfortable.

You will never be in trouble for reporting something honestly.

9.4 Leave honest reviews, only about the teaching.

10. Coursework

10.1 Coursework help on FortyFive follows the IB's rules. Coaches teach the skills the criteria reward and ask questions. They never write, rewrite, edit, translate, proofread, correct or mark up the work, and no files change hands.

10.2 Coaching is capped per piece of work: Internal Assessment 4 hours, Extended Essay 6 hours, TOK essay 3 hours, TOK exhibition 2 hours.

10.3 After every Coaching Session the Coach files a help log, and the Student adds their own next step. The Student should tell their supervisor that they are getting help and share their help logs.

10.4 Marker reports give bands, evidence from the work and questions to think about. They never rewrite the work and never predict a final IB grade. Files sent to the Marker are deleted 48 hours after the report is ready.

10.5 The Student signs the Coursework Code in Schedule 1. If it is broken, we may stop coaching and Marker checks for that piece of work.

11. Safety and reports

11.1 There is a Report button on every screen, and a report form on our website that needs no account. The Safeguarding Lead reads every report within 24 hours, and the same day if it is about a child's safety.

11.2 If a child is in immediate danger, call 112. Childline is 1098.

11.3 Where the law requires, including under the Protection of Children from Sexual Offences Act, 2012, we report concerns to the police without first holding our own inquiry. We may share information with the police and other authorities as the law allows.

11.4 We may suspend a Tutor at once while we look into a concern, and refund any bookings with them.

12. Personal data

12.1 We keep only what we need: names, school, subjects, exam session, bookings, messages, help logs, payments, consent records and reports. Our Privacy Notice explains each one and how long we keep it.

12.2 Tutors see only a Student's first name, DP year, subjects and exam session. They never see the Student's school, surname or contact details.

12.3 We never show ads, never sell or share data for marketing, and never track how students behave or target them with advertising, as section 9 of the Digital Personal Data Protection

Act, 2023 requires for children.

12.4 You can download your data, correct it, or ask us to delete it, by writing to *[privacy email]*. Some records (payments, consent records and safety reports) must be kept for the time the law requires.

13. Reviews

13.1 Only a Student or Parent who paid for a finished Lesson or Coaching Session can review it. Tutors may reply once. We remove a review only if it is abusive, reveals personal data, or is not about the teaching.

14. What we are responsible for

14.1 We check every Tutor carefully, but we cannot guarantee how any person will behave, and we are not responsible for exam results.

14.2 Except where the law does not allow it, our total liability to you is limited to what you paid us in the 3 months before the claim. Nothing in this agreement takes away your rights under the Consumer Protection Act, 2019.

15. Closing an account

15.1 You may close the account at any time. Bookings not yet held are cancelled and refunded in full.

15.2 We may suspend or close an account that breaks this agreement. We will tell you why, and give you a chance to respond, unless a safety concern means we must act at once.

16. Changes

16.1 We may change this agreement or our Policies to keep children safer, to follow the law or to improve the Platform. We will give at least 30 days' notice of a change that affects you, unless a change is needed sooner for safety or by law. If you do not accept it, you may close the account before it takes effect.

17. Complaints

17.1 Write to our Grievance Officer, *[name]*, at *[email]*. We acknowledge every complaint within 48 hours and resolve it within one month, as the Consumer Protection (E-Commerce) Rules, 2020 require.

17.2 If you are not satisfied, you may approach the Consumer Commission or any other forum the law allows.

17.3 This agreement is governed by the laws of India. Subject to your rights as a consumer, the courts at Coimbatore have jurisdiction.

18. General

18.1 This agreement may be signed electronically, which is valid under the Information Technology Act, 2000, or on paper.

18.2 If any part of this agreement cannot be enforced, the rest still applies.

18.3 This agreement, with its Schedules and our Policies, is the whole agreement between us about learning on FortyFive.

Schedule 1

The Coursework Code

For the Student to sign. The IB treats work written even partly by someone else, or by AI, as not the Student's own, and that can cost a Diploma. Please initial each line.

	I promise that	Initials
1	the work is mine, and every word of it is written by me.	
2	I will not ask a Coach to write, edit, correct, translate or mark up my work, and I will not send them my files.	
3	I will follow my school's rules on outside help and on AI.	
4	I will tell my supervisor that I am getting help, and share my help logs.	
5	I will credit any AI feedback, including Marker reports, in the way my school asks.	

Signed by the Student

Signature

Full name, in capitals

Date

Place

Schedule 2

The Parent's consent

For the Parent of an Under-18 to complete. Please tick each box you agree to.

☐ I am the parent or legal guardian of the Student named in this agreement.

☐ I consent to FortyFive processing my child's personal data, and my own, for the purposes in its Privacy Notice: running the account, bookings and payments, safety, coursework help logs and the Marker. I know I can withdraw this consent at any time by writing to *[privacy email]*, and that the account will then be closed.

☐ I understand that I approve and pay for every booking, and that I can see every booking, message, help log and Marker report.

☐ I understand that Coaching Sessions are always recorded.

Recording of Lessons (tick one)

☐ **Record my child's Lessons.** Recordings are kept for *[90 days]* and opened only by the Safeguarding Lead and integrity reviewers (clause 8).

☐ **Do not record my child's Lessons.** I can change this at any time in Settings.

Signed by the Parent

Signature	Full name, in capitals
Date	Place

Signatures

By signing, each person below confirms they have read this whole agreement, including its Schedules, and agrees to it.

Signed by the Parent (the party, if the Student is under 18)

Signature	Full name, in capitals
Date	Place

Signed by the Student

Signature	Full name, in capitals
Date	Place

Signed for FortyFive, by an authorised signatory

Signature	Full name, in capitals
Date	Place
Designation	

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